DAVID SHOKO

And

DADIRAI SHOKO

Versus

BLESSING MATSVIMBO

IN THE HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 22 JULY AND 21 AUGUST 2025

Opposed Application

S. Mutandi, for the applicants
D. Kossamu, for the respondent

KABASA J: This is an application wherein the applicants seek for an order of eviction against the respondent from Lot 2 of Lot 42 North Trenance, Bulawayo. The application is opposed.

The genesis of the application can be gleaned from the following:-

Background Facts

The applicants, who are husband and wife purchased a property, known as Lot 2 of Lot 42 North Trenance Bulawayo, from one Kennedy Nyakudziwanza "the seller." They paid the full purchase price of US$13 000 in December 2013.

They subsequently obtained title in 2022 under Deed of Transfer 1941/2022. The first applicant who is based in Namibia arrived in Zimbabwe on 24 December 2024 and on 31 December 2024 proceeded to the property intending to commence development projects. He was surprised to find that someone, who he later learnt was the respondent, had constructed a 2-roomed structure at the property. The occupier was the respondent's mother from whom he learnt that the respondent had purchased the property in 2006. As the title holder he advised the respondent that the property was sub-divided in 2016 and he holds title to Lot 2 of Lot 42 North Trenance.

In opposing the application, the respondent took a point *in limine* to the effect that there are material disputes of fact which cannot be resolved on the papers.

As regards the merits, the respondent contended that she purchased the property whose description is given as half portion of subdivision 1 of Stand No. A Subdivision of Lot 42 North Trenance Bulawayo from the seller in January 2006 and paid the full purchase price of $150 000 000 which was paid in four instalments, a deposit of $100 000 and three instalments of $17 000 000 with a final instalment of $16 000 000 paid on 29 April 2006. Efforts to get title were frustrated by the seller who stated that the title deed was being held by a creditor. She later learnt that the property had been sold to someone else. She was not aware of this development. She has since reported the seller to the police and he is now facing fraud charges.

The Parties' Submissions

Counsel for the applicants submitted that the applicants are the registered owners of Lot 2 of Lot 42 North Trenance measuring 4047 square metres and registered under Deed of Transfer 1941/2022. That title has not been challenged and remains valid. The respondent claims to have purchased half portion of subdivision 1 of Stand No. A Subdivision of Lot 42 North Trenance, a description different from the property the applicants hold title to.

In 2006, the year the respondent entered into an Agreement of Sale, Lot 2 of Lot 42 was non-existent.

There are therefore no material disputes of facts and the applicants have shown that they own the property and the respondent is on that property without their consent, making a case for *rei vindicatio*.

Even if it is accepted that there was a double sale, the property is in applicants' names and the validity of the title deed has not been challenged, so counsel argued. The applicants have therefore made a case for the relief they seek.

Counsel for the respondent's argument, as articulated in the heads of argument was that the respondent bought the property in 2006 and paid the full purchase price for it. The seller sold the property to the applicants at a time the respondent was trying to obtain title to the property. The applicants must have connived to defraud the respondent as they did not, unlike the respondent, report the seller to the police for fraud.

The applicants ought to have visited the property and if they had they would have seen the structure erected thereat which would have indicated the presence of some other purchaser.

The seller has not been joined to the proceedings and so the answer as to how the property was purchased by two people is not readily available.

The applicants cannot be said to be the owners of the property as they purchased it more than seven years after the respondent. The transfer into their names was fraudulently done, so counsel argued.

THE LAW AND THE FACTS

In *Supa Plant Investments (Pvt) Ltd* v *Chidavaenzi* 2009 (1) ZLR 132 MAKARAU J (as she then was) articulated the presence of material disputes of fact thus:-

> "A material dispute of fact arises when such material facts put by the applicant are disputed and traversed by the respondent in such a manner as to leave the court with no ready answer to the dispute between the parties in the absence of further evidence."

At the hearing of the matter I set out the facts as reflected in the parties' papers and asked counsel for the respondent what issue was in dispute which, if the matter was to be referred to trial, would be identified as the issue(s) to be determined. Counsel had no answer to the question I posed.

This is a claim for *rei vindicatio*. The uncontroverted facts show that the applicants bought this property whose description does not tally with the description of the property bought by the respondent. The respondent bought the property in 2006 and the applicants in 2013 and they paid the purchase price in full. The applicants obtained title and such title has not been impugned.

The seller is facing fraud charges after the respondent reported the matter to the police. There is nothing to show either directly or circumstantially that the applicants were aware of the respondent's claim to the property either at the time they brought it or at the time they obtained title.

There are no disputes of fact to talk about let alone material ones. Only where the court is left in a quandary as to what answer to give to the disputed facts without further evidence can it be said there exists material disputes of fact. The key word being "material" and not just any dispute of fact.

I therefore dismissed this point *in limine* as it had no merit. The position would have been different if the matter I was seized with was one where the respondent was seeking specific performance from the seller and seeking to have the applicants' title to the property vacated.

Turning to the merits, one who claims *rei vindicatio* has to establish two factors: -

(1) That they are the owners of the property.
(2) That the property is in the possession of someone else without their consent.

In *Stanbic Finance Zimbabwe* v *Chivhungwa* 1999 (1) ZLR 262 MALABA J (as he then was) articulated the essential elements of the action *rei vindicatio*. The applicant must show that it is the owner of the property and that possession of it is with the respondent but such possession is without the applicant's consent.

In *Unimark Distributors (Pvt) Ltd* v *ERF 94 Silvertondale (Pvt) Ltd* 1999 (2) SA 986 at 996, the court had this to say:-

> **"**But there can be little doubt that one of its incidents (dominium) is the right of exclusive possession of the *res*, with the necessary corollary that the owner may claim his property wherever found from whomsoever is holding it. It is inherent in the nature of ownership that possession of the *res* should be normally be with the owner and it follows that no other person may withhold it from the owner unless he is vested with some rights enforceable against the owner, e.g. right of retention or contractual right." (See also *Nyahor*a v *CFI Holdings Private Limited* S 81-2004, *Oakland Nominees* v *Gelria Mining and Investment Co Limited* 1976 (1) SA 441 (A), *Zavaza* v *Tenderere & Ors* HH 740-15, *Alspite Investments (Pvt) Ltd* v *Westerhorf* 2009 (2) ZLR 226 (H)).

The applicants' title has not been impugned and is valid. There is nothing to suggest that they obtained title in order to frustrate the respondent's claim (*Barros & Anor* v *Chimphonda* 1999 (1) ZLR 58.

The applicants' claim is *rei vindicatio* and it is therefore against the one possessing it. The non-citation of the seller is neither here nor there. They are not seeking to evict the seller from whom they have already obtained title. Why would they cite the seller under such circumstances? It is important to note that the respondent said she was not aware of the

applicants, they too were not aware of her claim to the property when they bought it and obtained title.

The fact that the respondent has reported the seller for fraud is telling. He is the one who duped her and it is to him that a claim lies. I do not intend to plough this area any further for the reason already articulated. I have dealt with it only in so far as was necessary to show that as against the applicants, the respondent has no enforceable rights against the owners, right of retention or contractual right.

The respondent can therefore not successfully legally resist eviction in the circumstances.

As regards costs, costs are in the court's discretion. One cannot say the respondent opposed the application just to harass the applicants. She had reason to, although such did not avail her as a legally enforceable defence.

I also queried with applicants' counsel the relevance of paragraph two of the order sought which is essentially an interdict. Counsel explained it was out of an abundance of caution. It is my considered view that once eviction is ordered, that suffices, for it adequately speaks to the remedy sought by the owner of a property against the one possessing it without their consent.

DISPOSITION

The applicants are the registered owners of the property which is being occupied by the respondent. Such occupation is not with the applicants' consent. The applicants' title to the property has not been impugned. The respondent has chosen to report the seller for fraud. The applicants have therefore made a case for the relief they seek.

That said, I make the following order: -

1. The respondent and any person claiming occupation through her be and are hereby ordered to vacate the applicants' property, being Lot 2 of Lot 42 North Trenance Bulawayo within 7 days of receipt of this order.

2. In the event of failure to do so, the Sheriff be and is hereby authorised to evict the respondent and all those claiming occupation through her.

3. The respondent shall pay costs of the application at the ordinary scale.

Cheda and Cheda Associates, applicants' legal practitioners
Liberty Mcijo & Associates, respondent's legal practitioners